

Court No. - 37

Case :- WRIT - C No. - 35216 of 2012

Petitioner :- Prem Shanker Pandey

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- A.D. Singh

Respondent Counsel :- C.S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Ram Surat Ram (Maurya),J.

By means of this writ petition the petitioner has challenged the demand notice issued by Executive Engineer.

Let this writ petition be put up before the Bench hearing corporation matters.

Put up this case day after tomorrow i.e. 25th July, 2012 as fresh.

Order Date :- 23.7.2012

S.Prakash

Court No. - 35

Case :- WRIT - C No. - 35216 of 2012

Petitioner :- Prem Shanker Pandey

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- A.D. Singh

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

It appears that checking was made at the premises of the petitioner on 12.5.2011. Theft of electricity was allegedly detected. Consequently, Provisional Assessment dated 9.8.2011 was made in respect of the petitioner. Thereafter, a Demand Notice dated 15.2.2012 was issued to the petitioner, copy whereof has been filed as Annexure-1 to the Writ Petition. The petitioner, thereafter, filed the present Writ Petition, inter alia, praying for quashing the said Demand Notice dated 15.2.2012 (Annexure-1 to the Writ Petition).

Notice on behalf of the respondent no.4 was accepted by Shri Mahboob Ahmad. He has filed today a Short Counter Affidavit on behalf of the respondent no.4.

Shri A.D. Singh, learned counsel for the petitioner states that he does not propose to file any Rejoinder Affidavit in reply to the aforesaid Short Counter Affidavit.

We have heard Shri A.D. Singh, learned counsel for the petitioner, the learned Standing Counsel appearing for the respondent nos. 1,2 and 3 and Shri Mahboob Ahmad, learned counsel for the respondent no.4, and perused the record.

In paragraph 4 of the Short Counter Affidavit, filed today, it is stated that the petitioner did not file any Objections against the Provisional Assessment dated 9.8.2011 even though time upto 8.9.2011 was granted to the petitioner for the same. However, in paragraphs 5 and 6 of the Short Counter Affidavit, it has been stated as under:

"5. That since no objection was filed hence recovery certificate was issued without including the compounding charges but in absence of final assessment the department is withdrawing recovery citation hence a letter to this effect has been sent to Collector Ghazipur.

6. That the petitioner has right to file objection against the provisional assessment and the amount raised therein Rs. 1,31,462/- failing which final assessment shall be made in the matter. However, it also made clear that the final report has wrongly been submitted about which the deponent will enquire and file protest petition."

From the averments made in the above-quoted paragraphs of the Short Counter Affidavit, it is evident that as no Final Assessment Order was passed

in respect of the petitioner, the Department is withdrawing the recovery proceedings against the petitioner, and the petitioner will have right to file Objections against the aforesaid Provisional Assessment dated 9.8.2011.

In view of the above averments made in the Short Counter Affidavit, we are of the opinion that the interest of justice would be subserved by disposing of the present Writ Petition with the following directions:

1. On or before 28.9.2012, the petitioner may file fresh Objections against the aforesaid Provisional Assessment dated 9.8.2011 before the respondent no.4 alongwith a certified copy of this order.
2. On receipt of the Objections within the aforesaid period, the respondent no.4 will proceed to consider and decide the said Objections after giving reasonable opportunity of being heard to the petitioner and by passing reasoned and speaking order by 23.11.2012 in accordance with law including the relevant provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.
3. The order so passed will be served on the petitioner personally and will also be sent by Registered Speed Post A.D. to the petitioner forthwith.
4. Till 7.12.2012 or till the disposal of the Objections of the petitioner, as mentioned above, whichever is earlier, no coercive measures will be taken against the petitioner in respect of the aforesaid Provisional Assessment dated 9.8.2011.

The Writ Petition is accordingly disposed of with the aforesaid directions.

However, on the facts and in the circumstances of the case, there will be no order as to costs.

Order Date :- 27.8.2012

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